

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM3
HON. Judge Erin Rowe
Date: 09/16/26

Court Room Rules and Notices

#	Case Name	Tentative
1	Heller - Trust 01462399	RESPONSE AND MOTION TO COMPEL / FIRST AMENDED PETITION / AFFIRMATIVE RELIEF (ROA 83) Self-represented parties Keith and Robin Daill ("Moving Parties") filed a 99-page document as a "motion" that is captioned as follows: "Response and Motion to Compel Probate Code: §§ 16061, 16061.7, 16062, 16063, 16420, (16060.5), 8872, 15610.070, 850, 859, Penal Code §§ 518, 368, 115 / First Amended Petition for Modification and Termination of Trust; Petition for Trustee Instruction [Probate Code §§ 15409, 17200 (A) and 17200 (B)] / Affirmative Relief." The motion appears to be a hybrid of a responsive pleading and a petition. It initially consists of a response to the First Amended Petition (ROA 25) filed on 5/6/25 by Petitioner Justin Word (the "Trustee"). It then seeks orders for the Trustee to provide trust documents and information pursuant to Probate Code section 16060 et seq. It further seeks orders invalidating a will, as well as miscellaneous injunctive orders (e.g., for Petitioner to turn over keys and provide security login information). A responsive pleading to a petition must be filed separately and should be captioned to be heard on the same date as the petition to which it is responding. (Prob. Code § 1043.) A request for a trustee to comply with Probate Code sections 16060 et seq. must be brought by petition, not by motion. (Prob. Code § 17200(b).) Absent special circumstances, a request to invalidate a will must be brought by petition in a separate probate proceeding, not in a trust proceeding. Here, it is unclear whether Moving Parties' requested relief as to the will is appropriately raised in this trust proceeding, but it is clearly not appropriately raised by motion. To the extent that Moving Parties seek to compel compliance with discovery, they must file an appropriate motion under the Civil Discovery Act (Code Civ. Proc. § 2016.010 et seq.). Here, Moving Parties request the production of documents and information, but there is no evidence that Moving Parties have sought to obtain the documents or information through formal discovery procedures. A request for injunctive relief must be sought through the

		procedures set forth in Code of Civil Procedure section 525 et seq. Overall, the motion fails to comply with Code of Civil Procedure section 1010 and California Rules of Court, rule 3.1110(a) in that it fails to give notice of the nature of the order sought and the grounds for the issuance of the order. It further fails to comply with California Rules of Court, rules 3.1112, 3.1113 and 3.1115. Additionally, and as more fully set forth in the Opposition filed by the Trustee (ROA 130), the motion was not timely served as a petition or as a motion. (Prob. Code §§ 17203 and 1005.) Based on the foregoing, the motion is DENIED. This order is without prejudice to Moving Parties' right to seek the relief requested in a procedurally appropriate manner. Counsel for trustee shall give notice of this ruling.
2	Khaleeque – Probate 01304890	MOTIONS TO VACATE (ROA 808) Dilshad Khaleeque, in propria persona, moves for an order to vacate the court's 4/13/26 Order (ROA 603) approving the Petition for Instructions (ROA 431) filed by Executor Abid Bodla. (ROA 808.) Mr. Khaleeque moves pursuant to Code of Civil Procedure section 473(d) on the grounds that the 4/13/26 Order (ROA 603) is void for lack of due process. Mr. Khaleeque alleges that the Probate Examiner Notes preceding the hearing on the Petition for Instructions identified notice deficiencies. He further alleges that the notice deficiencies were not resolved before the 4/13/26 hearing. The court's records reflect that Mr. Khaleeque and other interested persons were electronically served with a Notice of Hearing and the Petition for Instructions on 12/3/25. (ROA 443.) The court's records further reflect that Mr. Khaleeque was served with the Notice of Hearing and Petition for Instructions by mail on 12/8/25 to the following address: 3320 E La Palma Ave, Anaheim, CA 92806. (ROA 472.) There is no evidence that Mr. Khaleeque resides at, or would otherwise receive service at, such address. On 3/26/26, Executor Abid Bodla filed a Second Verified Supplement to Petition for Instructions (ROA 534) to clear the Probate Examiners' notes. In said Supplement, Mr. Bodla states that Mr. Khaleeque and the other interested parties could not be served by mail because they do not have a permanent residential address or a postal mailbox. Mr. Bodla explained that he had

	successfully sent and received electronic communications from these interested parties, including Mr. Khaleeque, numerous times. Mr. Bodla requested that the court "accept service by email as effective." On 4/13/26, the court approved the Petition for Instructions (ROA 603), and on 4/17/26, the court signed the Order Approving Petition for Instructions (ROA 605). By approving the Petition for Instructions, the court seemingly granted Mr. Bodla's request to accept electronic service as effective. Probate Code section 1215 requires service by mail or personal delivery, unless there has been consent to receive service electronically. The court's records do not reflect that Mr. Khaleeque has consented to electronic service. However, there is no evidence that service by mail to Mr. Khaleeque was possible at the time the Petition was filed and served. <u>The court has the following questions:</u> 1. Did Mr. Khaleeque have a mailing address at the time the Petition was served (i.e., in December 2025)? If so, what was that mailing address? 2. If Mr. Khaleeque had a mailing address in December 2025, did he inform the court of it? If so, when and how? 3. If Mr. Khaleeque had a mailing address in December 2025, did he inform Mr. Bodla or his counsel of it? If so, when and how? 4. The court understands that Mr. Khaleeque claims he did not receive the Petition for Instructions along with the service of the Notice of Hearing. When and how did Mr. Khaleeque eventually receive a copy of the Petition for Instructions? 5. The Petition for Instructions was served by Mr. Bodla's prior counsel, Zev S. Brooks. Petitioner's current counsel, Leslie L. Niven, filed a points and authorities in opposition to the instant motion to vacate. (ROA 835.) It is not supported by a declaration or any evidence concerning service. This motion is continued to 11/17/2026 at 11:00 AM in Department CM03. 10 court days prior to the hearing, Mr. Khaleeque shall file <u>one</u> declaration with the court answering each of the questions set forth in paragraphs 1-4 above. Any supporting evidence shall be attached to the declaration as exhibits, not filed separately. 10 court days prior to the hearing, Mr. Bodla must submit a declaration from a person having personal knowledge as to when and how the Petition for Instructions was served and attaching all supporting evidence (e.g., the email showing service from Mr.
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